

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY

Customer #:

Trf from:

Reviewer:

Initials

Date

Agent:

Chief:

To be completed by City/County ClerkLicense Fees Annual Fee: \$ 1050.00

Prorated Fee: \$ _____

Transfer Fee: \$ _____

Publishing Fee: \$ _____

Publishing Fee Direct Billed to Applicant: ☐Local License #: 603Date filed with clerk: 1/22/20

Advertising Dates: (2 Weeks)

1-29-2020 & 2-5-2020Hearing Date: 2 / 10 / 2020License Term: 4 / 1 / 2020 Through 3 / 31 / 2021
Month Day Year Month Day Year**LICENSING AUTHORITY:** Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**Applicant: C & Z LLCTrade/Business Name (dba): CHINA BUFFETBuilding to be licensed/Building Address: 1958 DELL RANGE BLVD STE D
Number & StreetCHEYENNE
CityWY
State82009
ZipLARAMIE
CountyMailing Address: 1958 DELL RANGE BLVD STE D
Number & Street or P.O. BoxCHEYENNE
CityWY
State82009
ZipBusiness Telephone Number: (307) 635-5699 Fax Number: ()E-Mail Address: helenxshi@hotmail.com

Brief legal description and the zoning of the licensed building or site for licensed building: W.S. 12-4-102 (a) (vi)

lot 3, Block 1, Cole Fire Station Addt. 4thCB**FILING FOR**☒ NEW LICENSE☐ TRANSFER OF LOCATION**FILING IN (CHOOSE ONLY ONE)**☒ CITY OF: CHEYENNE☐ COUNTY OF: _____**FILING AS (CHOOSE ONLY ONE)**☐ INDIVIDUAL
☐ PARTNERSHIP
☐ LP/LLP
☒ LLC☐ CORPORATION
☐ LTD PARTNERSHIP
☐ ORGANIZATION
☐ OTHER _____

TRANSFER OWNERSHIP

☐ ASSIGNMENT LETTER ATTACHED

FORMERLY HELD BY: _____

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE

☐ ON-PREMISE ONLY
(BAR)☐ OFF-PREMISE ONLY
(PACKAGE STORE)☐ COMBINATION ON/OFF PREMISE
(BOTH BAR & PACKAGE STORE)☒ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB☐ MICROBREWERY
☐ WINERY
☐ DISTILLERY SATELLITE
☐ WINERY SATELLITE
☐ COUNTY RETAIL or SPECIAL
MALT BEVERAGE PERMIT**SPECIAL DESIGNATIONS**☐ CONVENTION FACILITY
☐ CIVIC CENTER/EVENT CENTER/
PUBLIC AUDITORIUM
☐ GOLF CLUB
☐ GUEST RANCH
☐ RESORTTo Assist the Liquor Division with scheduling inspections: **WHEN DO YOU OPERATE?**☒ FULL TIME (e.g. Jan through Dec)☐ SEASONAL/PART-TIME☐ NON-OPERATIONAL/PARKED

(specify months of operation)

DAYS OF WEEK (e.g. Mon through Sat)

HOURS OF OPERATION (e.g. 10a - 2a)

from JAN to DECfrom Monday to Sundayfrom 11am to 9:30pm**ALL APPLICANTS MUST COMPLETE QUESTIONS 1-6**

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103 (a) (iii)

(1) OWN the licensed building?

☐ YES (own)

(2) LEASE the licensed building? (Lease must be through the term of the liquor license)

☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

(A) When the lease expires, located on page 2 paragraph 2 of lease.(B) Where the Sales provision for alcoholic or malt beverages is located, on page 1 paragraph 4 of lease.

(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

*original New
lease extended
3/2025 New
New assignment.*

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601 (b)

☐ YES ☒ NO
3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403

(a) Hold any interest in the license applied for?

☐ YES ☒ NO

(b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business?

☐ YES ☒ NO

(c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs?

☐ YES ☒ NO

(d) If you answered YES to any of the above, explain fully and submit any documents in connection there within:
4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103 (b)

☐ YES ☒ NO

If "YES", explain:

5. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102 (a) (ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

6. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102 (a) (iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
AI QIN ZHU	12/30/1962	4703 Mountain Rd #2 Cheyenne WY 82009	646-286 1296	1	100	YES ☐ NO ☒	YES ☐ NO ☒
JING ZHEN SHI	02/20/1983	4703 Mountain Rd #2 Cheyenne WY 82009	646-571 8638	1	0	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

7. BAR AND GRILL LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413 (a)

☐ YES ☐ NO**8. RESTAURANT LICENSE:**(a) Give a description of the dispensing room(s) and state where it is located in the building. W.S. 12-4-408 (b)
(e.g. 10 x 12 room in SE corner of building): 6' x 7' Room in CenterOF Bldg.

(b) Have you submitted a valid food service permit or application? W.S. 12-4-407 (a)

☒ YES ☐ NO

(c) Have you attached a drawing of the establishment that includes the restaurant dispensing room(s)? W.S. 12-4-410 (f)

☒ YES ☐ NO**9. RESORT LICENSE:**

Does the resort complex:

(a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land?

W.S. 12-4-401(b)(i)

☐ YES ☐ NO

(b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii)

☐ YES ☐ NO

(c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms?

W.S. 12-4-401(b)(iii)

☐ YES ☐ NO

(d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)?

W.S. 12-4-401(b)(iv)

☐ YES ☐ NO

(e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)

1. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO**10. MICROBREWERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ WINERY(b) Do you self distribute your products? W.S. 12-2-201(a)
(Requires wholesaler license with the Liquor Division)☐ YES ☐ NO

(c) Do you distribute your products through an existing malt beverage wholesaler?

W.S. 12-2-201(g)(i) (Requires authorization to sell license with the Liquor Division)

☐ YES ☐ NO**11. WINERY LICENSE:**

Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii)

☐ YES ☐ NO(a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT ☐ BAR AND GRILL ☐ MICROBREWERY**12. LIMITED RETAIL (CLUB) LICENSE:****FRATERNAL CLUBS** W.S. 12-1-101(a)(iii)(B)(a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO(b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO**13. LIMITED RETAIL (CLUB) LICENSE:****VETERANS CLUBS** W.S. 12-1-101(a)(iii)(A):

(a) Does the Veteran's organization hold a charter by the Congress of the United States?

☐ YES ☐ NO

(b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary?

☐ YES ☐ NO**14. LIMITED RETAIL (CLUB) LICENSE:****GOLF CLUBS** W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

(a) Do you have more than fifty (50) bona fide members?

☐ YES ☐ NO

(b) Do you own, maintain, or operate a bona fide golf course together with clubhouse?

☐ YES ☐ NO

(c) Are you a political subdivision of the state that owns, maintains, or operates a golf course?

☐ YES ☐ NO

1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g)

☐ YES ☐ NO

2. If Yes, have you submitted a copy of the food and beverage contract/lease?

☐ YES ☐ NO

My commission expires: October 5, 2022

**ASSIGNMENT AND ASSUMPTION OF LEASE AGREEMENT
AND CONSENT TO ASSIGNMENT**

THIS ASSIGNMENT AND ASSUMPTION OF LEASE AGREEMENT AND CONSENT TO ASSIGNMENT (this "Assignment") is made effective as of January 15, 2020 (the "Effective Date"), by and among PENG CHENG ZENG, an individual, and CHINA BUFFET, INC., a Wyoming corporation (collectively, the "Assignor"), C & Z LLC, a Wyoming limited liability company ("Assignee"), and CHEYENNE REAL ESTATE DEVELOPMENT II, LIMITED LIABILITY COMPANY, a Wyoming limited liability company, f/k/a Cheyenne Real Estate Development II, L.L.C., a Missouri limited liability company ("Landlord").

RECITALS:

- A. Assignor is the tenant of certain premises located at the shopping center commonly known as Cheyenne Shopping Center in Cheyenne, Wyoming, pursuant to that certain Lease Agreement dated July 20, 1998, as supplemented by that certain undated Lease Supplement, and that certain Lease Agreement dated July 1, 2000, both as extended by that certain renewal letter dated January 13, 2009, both as amended by that certain First Amendment to Lease Agreement dated February 21, 2014, both as extended by that certain renewal letter dated October 1, 2019, both as amended by that certain Letter Agreement dated January 13, 2020 (collectively, the "Lease"), between Assignor and Landlord.
- B. Assignor desires to assign and transfer all of Assignor's right, title and interest in, to and under the Lease upon the terms hereinafter set forth.
- C. Assignee desires to accept such assignment and transfer and to assume Assignor's obligations and liabilities under and with respect to the Lease to the extent hereinafter provided.
- D. Landlord desires to consent to such assignment and transfer upon the terms hereinafter set forth.

NOW, THEREFORE, for good and valuable consideration, the receipt and legal sufficiency of which are hereby acknowledged, the parties hereto do hereby agree as follows:

- 1. Effective as of the Effective Date, Assignor hereby assigns and transfers to Assignee all of Assignor's rights, obligations, title and interest in, to and under the Lease, to have and to hold the same unto Assignee, its successors and assigns forever, subject to the terms, covenants and conditions contained in the Lease. It shall be expressly understood and agreed that this assignment shall not in any manner relieve the undersigned Assignor or Guarantor from liability of the said covenants within the Lease.
- 2. Assignee for itself and its successors and assigns hereby accepts the assignment and transfer of the Lease from Assignor and hereby assumes and agrees to observe and perform all the obligations, terms, covenants and conditions of the Lease to be observed or performed by Assignor thereunder from and after the Effective Date and hereby assumes all liabilities arising out of or relating to the Lease or arising out of the acts or events occurring or conditions existing with respect to the Lease from and after the Effective Date.
- 3. Assignee acknowledges and agrees that no oral or written representations or warranties concerning the Lease have been made in connection with Assignee's agreement to accept the assignment and transfer of Assignor's rights under and to the Lease and to assume Assignor's obligations with respect thereto.

4. Landlord hereby consents to such assignment and transfer of the Lease from Assignor to Assignee and to such assumption by Assignee, all as provided in this Assignment and in the Lease; provided, however, that such consent is conditioned on and effective only on the prompt receipt by Landlord of a fee in the total amount of One Thousand and 00/100 Dollars (\$1,000.00) to cover attorneys' fees and expenses incurred by Landlord in connection with the preparation of this Assignment (the "Assignment Fee"). Landlord acknowledges receipt of the Assignment Fee.

5. Effective as of the date hereof, Tenant's notice address under Section 1.01(c) of the Lease shall be the following:

Ai Qin Zhu
4800 Van Buren Ave.
Cheyenne, WY 82009

6. Assignee acknowledges that Landlord may not have calculated or billed the year end reconciliations for costs relating to taxes, insurance, common area operating costs and other charges that may be prorated under the Lease for prior lease years and that Landlord may issue a statement of reconciliation for said prior years. Assignee acknowledges that Landlord has not calculated or billed the year end reconciliations for costs relating to taxes, insurance, common area operating costs and other charges that may be prorated under the Lease for the current lease year and Landlord shall issue a statement of reconciliation in the future. Assignee agrees to be responsible for the entire amount billed for such reconciliations.

7. Assignor and Assignee acknowledge that Assignor has deposited with Landlord a security deposit in the amount of Five Thousand Two Hundred Seventy-Nine and 00/100 Dollars (\$5,279.00), which security deposit Landlord shall continue to hold pursuant to the terms of the Lease. Assignor hereby relinquishes and releases all of its right, title and interest in such security deposit.

8. This Assignment shall be binding upon and shall inure to the benefit of and shall be enforceable by the parties hereto and their respective successors and assigns. In addition to the foregoing, Assignee acknowledges, on its behalf and on behalf of its successors and assigns, that the provisions hereof inure to the benefit of and are enforceable by each of the other respective parties to each of the respective instruments comprising the Lease and their respective successors and assigns. This Assignment shall not be effective until all parties, including Landlord, have signed the Assignment document.

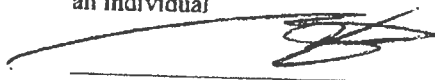
9. Each person executing this document on behalf of a party hereto hereby represents and warrants that he or she has the authority to execute this Assignment and to bind the party for which such person so executes this Assignment.

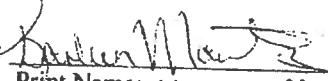
[SIGNATURE LINES BEGIN ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties hereto have executed this Assignment as of the date and year first above written:

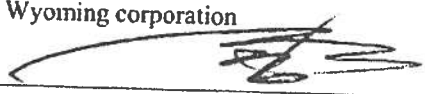
ASSIGNOR:

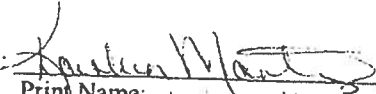
PENG CHENG ZENG,
an individual


By: Peng Cheng Zeng

Witness: 
Print Name: Karleen Martinez

CHINA BUFFET, INC.,
a Wyoming corporation

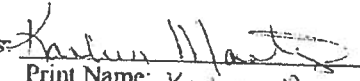

By:
Its:

Witness: 
Print Name: Karleen Martinez

ASSIGNEE:

C & Z LLC,
a Wyoming limited liability company

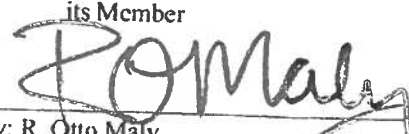

By:
Its:

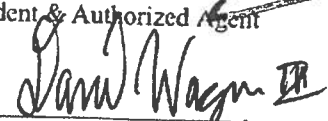
Witness: 
Print Name: Karleen Martinez

LANDLORD:

CHEYENNE REAL ESTATE DEVELOPMENT II, LIMITED LIABILITY
COMPANY, a Wyoming limited liability company

By: KROENKE GROUP INVESTMENTS, INC.,
its Member


By: R. Otto Maly
Its: President & Authorized Agent

Witness: 
Print Name: Daniel Wagner III

GUARANTOR

The undersigned hereby agrees to this Assignment as set forth herein and agrees that the Guaranty attached to the Lease shall remain in full force and effect as provided in this document.



Peng Cheng Zeng

GUARANTY

In order to induce **CHEYENNE REAL ESTATE DEVELOPMENT II, LIMITED LIABILITY COMPANY**, a Wyoming limited liability company ("Landlord"), to enter into that certain Assignment and Assumption of Lease Agreement and Consent to Assignment dated January 15, 2020 (the "Agreement"), between Landlord and **C & Z LLC**, a Wyoming limited liability company ("Tenant"), and in consideration of the benefits inuring to the undersigned (the "Guarantor") under that certain Lease Agreement dated July 20, 1998, as supplemented by that certain undated Lease Supplement, and that certain Lease Agreement dated July 1, 2000, both as extended by that certain renewal letter dated January 13, 2009, both as amended by that certain First Amendment to Lease Agreement dated February 21, 2014, both as extended by that certain renewal letter dated October 1, 2019, both as amended by that certain Letter Agreement dated January 13, 2020 (collectively, the "Lease"), the receipt and sufficiency of which is represented by the Guarantor to Landlord to be sufficient and adequate, the Guarantor hereby unconditionally guarantees the performance of all of Tenant's obligations under the Lease, including, without limitation, the payment of rent as provided therein. This Guaranty shall remain in full force throughout the original lease term and any renewals and extensions thereof. This Guaranty shall be binding upon Guarantor and Guarantor's heirs, legal representatives, successors and assigns, and shall inure to the benefit of Landlord and its successors and assigns. If there is more than one Guarantor, the liability of each Guarantor shall be joint and several.

This Guaranty is a guaranty of payment and performance and not of collection. Guarantor hereby waives notice of acceptance of this Guaranty agreement and all other notices in connection herewith or in connection with the liabilities, obligations and duties guaranteed hereby, including notices to it of default by Tenant under the Lease, and hereby waives diligence, presentment, protest and suit on the part of Landlord in the enforcement of any liability, obligation or duty guaranteed hereby. Guarantor further agrees that Landlord shall not be first or concurrently required to enforce against Tenant or any other person, any liability, obligation or duty guaranteed hereby before seeking enforcement thereof against Guarantor. The liability of Guarantor shall not be affected by any indulgence, compromise, settlement or variation of terms which may be extended to Tenant by Landlord, or agreed upon by Landlord or Tenant, and shall not be affected by any assignment or sublease by Tenant of its interest in the Lease, nor shall the liability of the Guarantor be affected by the insolvency, bankruptcy (voluntary or involuntary), or reorganization of Tenant, nor by the voluntary or involuntary liquidation, sale, or other disposition of all or substantially all of the assets of Tenant, or by the release of any other guarantor. Landlord and Tenant, without notice to or consent by Guarantor, may at any time or times enter into such modifications, extensions, amendments or other covenants respecting the Lease as they may deem appropriate, and Guarantor shall not be released thereby but shall continue to be fully liable to the performance of all obligations and duties of Tenant under the Lease as so modified, extended or amended.

Guarantor further agrees (1) to indemnify and hold harmless Landlord from and against any claims, damages, expenses, or losses, including to the extent permitted by law, the reasonable fees of an attorney (including in-house and staff counsel), resulting from or arising out of any breach of the Lease by Tenant or by reason of Tenant's failure to perform any of its obligations thereunder, and (2) to the extent permitted by law, to pay any costs or expenses, including the reasonable fees of an attorney (including in-house and staff counsel), incurred by Landlord in enforcing this Guaranty.

The Guarantor acknowledges that Landlord may assign its rights under the Lease to an institutional investor as security for a loan to be made by such institutional investor to Landlord, and as long as any indebtedness of Landlord shall be outstanding and such assignment of the Lease shall exist, such institutional investor assignee shall be entitled to bring any suit, action or proceeding against the undersigned for the enforcement of any provision of this Guaranty, and it shall not be necessary in any such

suit, action or proceeding to make Landlord a party thereto. This Guaranty may not be modified or amended without the prior written consent of such assignee of Landlord's interest in the Lease, and any attempted modification or amendment without such consent shall be void.

All existing and future advances by Guarantor to Tenant and all existing and future debts of Tenant to any Guarantor shall be subordinated to all obligations owed to Landlord under the Lease and this Guaranty. Guarantor assumes the responsibility to remain informed of the financial condition of Tenant and of all other circumstances bearing upon the risk of Tenant's default, which reasonable inquiry would reveal, and agrees that Landlord shall have no duty to advise Guarantor of information known to it regarding such condition or any such circumstance. Landlord shall not be required to inquire into the powers of Tenant or the officers, employees, partners or agents acting or purporting to act on its behalf, and any indebtedness made or created in reliance upon the professed exercise of such powers shall be guaranteed under this Guaranty. Each Guarantor hereby represents and warrants to Landlord that such Guarantor has received a copy of the Lease, has read or had the opportunity to read the Lease, and understands the terms of the Lease. The provisions in the Lease relating to the execution of additional documents, legal proceedings by Landlord against Tenant, severability of the provisions of the Lease, interpretation of the Lease, notices, waivers, the applicable laws which govern the interpretation of the Lease and the authority of Tenant to execute the Lease are incorporated herein in their entirety by this reference and made a part thereof. Any reference in those provisions to "Tenant" shall mean each Guarantor and any reference in those provisions to the "Lease" shall mean this Guaranty.

If any one or more of the provisions of this Guaranty shall be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provision of this Guaranty, and this Guaranty shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein. This Guaranty shall be construed according to the laws of the state where the Leased Premises are located (the "State"). By execution hereof, the undersigned specifically consent to this choice of law designation and consent that all actions or proceedings arising directly, indirectly or otherwise in connection with, out of, related to, or from this Guaranty or the Lease shall be litigated only in the courts located in the State, and the undersigned (i) consent and submit to the in personam jurisdiction of any state or federal court located within the State, (ii) waive any right to transfer or change the venue of litigation brought against the undersigned, and (iii) agree to service of process, to the extent permitted by law, by mail.

TO THE EXTENT PERMITTED BY APPLICABLE LAW, AND ACKNOWLEDGING THAT THE CONSEQUENCES OF SAID WAIVER ARE FULLY UNDERSTOOD, THE UNDERSIGNED HEREBY EXPRESSLY WAIVE THE RIGHT TO TRIAL BY JURY, THE RIGHT TO INTERPOSE ANY DEFENSE BASED UPON ANY STATUTE OF LIMITATIONS, ANY CLAIM OF LACHES AND ANY SET-OFF OR COUNTERCLAIM OF ANY NATURE OR DESCRIPTION IN ANY ACTION OR PROCEEDING INSTITUTED AGAINST THE UNDERSIGNED OR ANY OTHER PERSON LIABLE ON THE LEASE.

[SIGNATURES BEGIN ON NEXT PAGE]

IN WITNESS WHEREOF, Guarantor has caused this instrument to be executed this 14th day of January, 2020.

Personal Guarantor:

Zhi Ai Q
BY: Ai Qin Zhu
Social Security Number: 063-84-2774
Date of Birth: 12/20/1962
Date 1/14/2020 Witness [Signature]

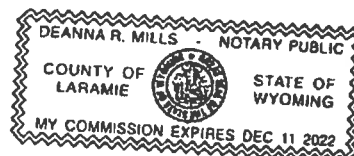
ACKNOWLEDGMENT OF INDIVIDUAL GUARANTOR

STATE OF Wyoming)
) ss:
COUNTY OF Laramie)

On this 14 day of January, 2020, before me, the undersigned, a Notary Public in and for the County and State aforesaid, came Ai Qin Zhu, who is/are personally known to me to be the same person(s) who executed the foregoing Guaranty and he/she/they acknowledged the execution of the same as his/her/their free and voluntary act(s) and deed(s).

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal in the County and State aforesaid on the day and year above written.

[Signature]
Notary Public



My Commission expires:

Dec 11 2022

TKG Management, Inc.

211 N. Stadium Boulevard, Suite 201, Columbia, Missouri 65203 573•449•8323

January 13, 2020

Via Email

Extending
Original
Contract to
3/31/2025

Re: CHEYENNE REAL ESTATE DEVELOPMENT II, LIMITED LIABILITY COMPANY, a Wyoming limited liability company, f/k/a Cheyenne Real Estate Development II, L.L.C., a Missouri limited liability company ("Landlord"), and PENG CHENG ZENG, an individual, and CHINA BUFFET, INC., a Wyoming corporation (collectively, "Tenant"), are bound by that certain Lease Agreement dated July 20, 1998, as supplemented by that certain undated Lease Supplement, and that certain Lease Agreement dated July 1, 2000, both as extended by that certain renewal letter dated January 13, 2009, both as amended by that certain First Amendment to Lease Agreement dated February 21, 2014 (the "First Amendment"), both as extended by that certain renewal letter dated October 1, 2019 (collectively, the "Lease"), with respect to premises containing approximately 5,279 square feet ("Premises") within the shopping center known as Cheyenne Shopping Center in Cheyenne, Wyoming ("Shopping Center"), and as more fully described in the Lease - Letter Agreement.

Dear Tenant:

All capitalized terms not defined herein shall have the same meaning as set forth in the Lease. The purpose of this Letter Agreement is to clarify that the First Amendment include that certain Lease Agreement dated July 20, 1998, as amended.

The defined term "Lease" in the recitals of the First Amendment shall be modified to the following: "certain Lease Agreement dated July 20, 1998, as supplemented by that certain undated Lease Supplement, and that certain Lease Agreement dated July 1, 2000, both as extended by that certain renewal letter dated January 13, 2009, both as amended by that certain First Amendment to Lease Agreement dated February 21, 2014 (collectively, the "Lease")."

The square footage in the recitals of the First Amendment shall be modified from "one thousand five hundred (1,500)" to "five thousand two hundred seventy-nine (5,279)."

The rent schedule in Section 2 of the First Amendment shall be modified to:

Term	Monthly Rent	Annual Rent	Rent Per Square Ft.
1/1/2015 - 3/31/2016	\$5,833.30	\$69,999.54	\$13.26
4/1/2016 - 3/31/2017	\$5,952.07	\$71,424.87	\$13.53
4/1/2017 - 3/31/2018	\$6,070.85	\$72,850.20	\$13.80
4/1/2018 - 3/31/2019	\$6,194.03	\$74,328.32	\$14.08
4/1/2019 - 3/31/2020	\$6,317.20	\$75,806.44	\$14.36

TKG Management, Inc.

January 13, 2020

Page 2

The rent schedule in Section 3 of the First Amendment shall be modified to:

Term	Monthly Rent	Annual Rent	Rent Per Square Ft.
4/1/2020 – 3/31/2021	\$6,444.78	\$77,337.35	\$14.65
4/1/2021 – 3/31/2022	\$6,572.36	\$78,868.26	\$14.94
4/1/2022 – 3/31/2023	\$6,704.33	\$80,451.96	\$15.24
4/1/2023 – 3/31/2024	\$6,836.31	\$82,035.66	\$15.54
4/1/2024 – 3/31/2025	\$6,972.68	\$83,672.15	\$15.85

For purposes of clarity, Landlord and Tenant acknowledge and agree that certain renewal letter dated October 1, 2019 shall apply to that certain Lease Agreement dated July 20, 1998, as amended, and that certain Lease Agreement dated July 1, 2000, as amended.

Except as specifically amended hereby, all provisions and covenants of the Lease are and shall remain in full force and effect as stated therein, except to the extent specifically amended by the provisions of this letter.

[SIGNATURES BEGIN ON NEXT PAGE]

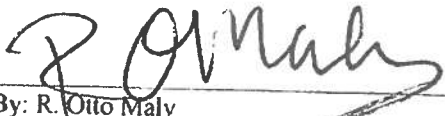
TKG Management, Inc.

January 13, 2020
Page 3

LANDLORD:

**CHEYENNE REAL ESTATE DEVELOPMENT II, LIMITED
LIABILITY COMPANY**, a Wyoming limited liability company

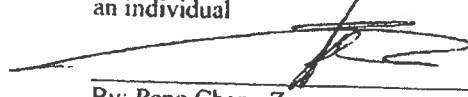
By: KROENKE GROUP INVESTMENTS, INC.,
its Member

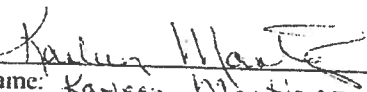

By: R. Otto Maly
Its: President & Authorized Agent
Date: 1/15/2020

AGREED AND ACKNOWLEDGED:

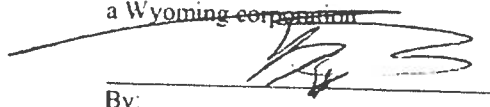
TENANT:

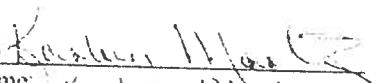
PENG CHENG ZENG,
an individual


By: Peng Cheng Zeng
Date:

Witness: 
Print Name: Karleen Martinez

CHINA BUFFET, INC.,
a Wyoming corporation


By:
Its:
Date:

Witness: 
Print Name: Karleen Martinez

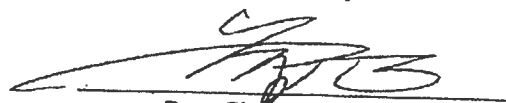
TKG Management, Inc.

January 13, 2020

Page 4

GUARANTOR AFFIRMATION

The undersigned hereby agrees to this Letter Agreement as set forth herein and agrees that the Guaranty attached to the Lease shall remain in full force and effect.

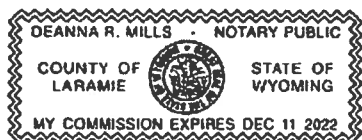

Peng Cheng Zeng

ACKNOWLEDGMENT OF INDIVIDUAL GUARANTOR(S)

STATE OF Wyoming)
COUNTY OF Laramie) ss:

On this 14th day of January, 2020, before me, the undersigned, a Notary Public in and for the County and State aforesaid, came Peng Cheng Zeng, who is/are personally known to me to be the same person(s) who executed the foregoing Guarantor Affirmation and he/she/they acknowledged the execution of the same as his/her/their free and voluntary act(s) and deed(s).

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal in the County and State aforesaid on the day and year above written.




Notary Public

My Commission expires:

Dec 11, 2022

FIRST AMENDMENT TO LEASE AGREEMENT

THIS FIRST AMENDMENT TO LEASE AGREEMENT ("Agreement") is made this 21st day of February, 2014 ("Effective Date"), by and between ESTATE DEVELOPMENT II, L.L.C., a Wyoming limited liability company ("Landlord") and PENG CHENG ZENG, Inc. ("Tenant") and China Buffet, Inc.

original
lease

PZ
POM

WITNESSETH:

WHEREAS, Landlord and Tenant are bound by that certain Lease Agreement entered into on or about July 1, 2000 (the "Lease"), whereby Landlord leases to Tenant certain premises containing approximately one thousand five hundred (1,500) square feet located at 1958 Dell Range Boulevard, Cheyenne, Wyoming ("Premises") as more particularly described in the Lease.

WHEREAS, the parties are now desirous of making certain amendments, changes, and alterations to said Lease to reflect accurately their intents and wishes.

NOW THEREFORE, for One Dollar (\$1.00) and other good and valuable consideration, the sufficiency of which is hereby acknowledged, Landlord and Tenant agree as follows:

1. **Extension of Lease Term.** The current Lease Expiration Date is December 31, 2014. The Lease Term is hereby extended for a period of five (5) years three (3) months; the new Lease Expiration Date shall be March 31, 2020 ("Expiration Date") upon all of the terms and conditions contained in the Lease, except that the Minimum Rent shall adjust as provided in Paragraph 2 below.

2. **Minimum Rent.** Commencing on January 1, 2015, Tenant shall pay Minimum Rent as set forth below on the Premises. The Minimum Rent payable by Tenant to Landlord shall be as follows:

Term	\$ Per Square Foot Per Year	\$ Per Month	\$ Per Year
January 1, 2015 – March 31, 2016	\$13.26	\$1,657.50	\$19,890.00
April 1, 2016 – March 31, 2017	\$13.53	\$1,691.25	\$20,295.00
April 1, 2017 – March 31, 2018	\$13.80	\$1,725.00	\$20,700.00
April 1, 2018 – March 31, 2019	\$14.08	\$1,760.00	\$21,120.00
April 1, 2019 – March 31, 2020	\$14.36	\$1,795.00	\$21,540.00

3. **Option Period.** Subject to the terms set below, Tenant may extend the Lease Term for five (5) additional years, commencing on April 1, 2020 (the "Option Commencement Date") and ending on March 31, 2025 (such right being referred to as the "Option" and such five (5) year period being hereinafter referred to as the "Option Period"). The Option Period shall upon commencement be considered part of the Lease Term. The Option is personal to the Tenant named in the Lease and may not be assigned, and any termination of the Lease during the Extension Term (defined in Paragraph 1 of this Agreement) will terminate any and all rights

Tenant may have to exercise the Option. Tenant may only exercise the Option by furnishing written notice to Landlord of Tenant's exercise of the Option ("Tenant's Option Notice"), with Tenant's Option Notice to be received by Landlord not less than six (6) months prior to the expiration of the Extension Term. If Tenant fails to timely provide Tenant's Option Notice during the specified period above, Tenant shall have no further right to extend the Lease Term. Tenant's exercise of the Option shall, at Landlord's sole election, be of no force or effect in the event that Tenant is in default beyond any applicable notice and opportunity to cure period under the Lease at the time of Landlord's receipt of Tenant's Option Notice. Except as otherwise expressly set forth in this Agreement, the terms and conditions of this Lease during the Option Period shall be the same as during the Extension Term, except that the monthly Minimum Rent shall be determined as set forth below. Tenant shall not be entitled to any free rent, tenant improvement allowance or other similar concessions and Tenant shall have no further right to extend the Lease Term.

The monthly Minimum Rent due and payable during the Option Period shall be as follows:

Term	\$ Per Square Foot Per Year	\$ Per Month	\$ Per Year
April 1, 2020 – March 31, 2021	\$14.65	\$1,831.25	\$21,975.00
April 1, 2021 – March 31, 2022	\$14.94	\$1,867.50	\$22,410.00
April 1, 2022 – March 31, 2023	\$15.24	\$1,905.00	\$22,860.00
April 1, 2023 – March 31, 2024	\$15.54	\$1,942.50	\$23,310.00
April 1, 2024 – March 31, 2025	\$15.85	\$1,981.25	\$23,775.00

4. **No Construction Against Draftsman.** No inference in favor of or against any party shall be drawn from the fact that such party has drafted any provisions of this Agreement or that such provisions have been drafted on behalf of said party.

5. **Binding Effect; Governing Law.** This Agreement inures to the benefit of and shall be binding upon Landlord and Tenant and their respective successors and permitted assigns. This Agreement and the rights of the parties hereunder shall be governed by and construed in accordance with the laws of the State of Wyoming.

6. **Partial Invalidity.** If any term, covenant or condition of this Agreement, or the application thereof to any person or circumstance, shall to any extent be invalid or unenforceable, the remainder of this Agreement or the application of such term, covenant or condition of this Agreement shall be valid and enforceable to the fullest extent permitted by law.

7. **Miscellaneous.** Except as specifically amended by the provisions of this Agreement, the terms and provisions stated in the Lease shall continue to govern the rights and obligations of Landlord and Tenant with respect to the matters that are the subject of the Lease; and all provisions and covenants of the Lease are and shall remain in full force and effect as stated therein, except to the extent specifically amended by the provisions of this Agreement. The Lease and this Agreement shall be construed as one instrument. In that regard, the Lease and this Agreement, including all exhibits and addenda (if any) to each such document, constitute the entire agreement between the parties relative to the subject matter hereof and

thereof and supersede all prior and contemporaneous agreements and understandings of Landlord and Tenant in connection therewith. Captions and headings throughout this Agreement are inserted only as a matter of convenience and are not to be given any effect whatsoever in construing this Agreement. Tenant hereby acknowledges and represents that Landlord is not in default of the Lease. Words of masculine, feminine or neuter gender as used in this Agreement shall mean and include the correlative words of the other genders, and words used in this Agreement importing a singular number shall mean and include the plural number and vice versa. All references in this Agreement to numbered paragraphs are references to the paragraphs of this Agreement, unless otherwise expressly designated in context.

[SIGNATURES BEGIN ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties have executed this Agreement to be effective as of the Effective Date written above.

WITNESS:

LANDLORD:

CHEYENNE REAL ESTATE
DEVELOPMENT II, L.L.C.
a Wyoming limited liability company

Lisa Monk
Print Name: LISA MONK

By: [Signature]
Name: RO Otto Maly
Title: Authorized Agent

STATE OF Missouri)
COUNTY OF Boone) SS:

On the 21st day of February, 2014, before me, the undersigned, a notary public in and for said state, personally appeared RO Otto Maly, personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is (are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), and that by his/her/their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument.

My Commission Expires: 10-24-16

[Signature]
Name: Gina M Kenney
Notary Public



- 18.03 Notice by Lessee. Lessee shall give immediate notice to Lessor in case of fire or accidents, or damage to or of defects in the leased premises or in the building of which the leased premises are a part.

ARTICLE XIX: HOLDING OVER; SUCCESSORS

- 19.01 Holding Over. Any holding over after the expiration of the term hereof, with or without the consent of Lessor, shall be construed to be a tenancy from month to month at the rents herein specified (prorated on a monthly basis) and shall otherwise be on the terms and conditions herein specified, so far as applicable; provided, however, if such holding over is without the consent of Lessor; minimum rent for such holdover period shall be two (2) times the minimum rent due for the last month of the lease term.
- 19.02 Successors and Assigns. Except as otherwise herein provided, this Lease and all the covenants, terms, provisions and conditions herein contained shall inure to the benefit of and be binding upon the heirs, representatives, successors and assigns of each party hereto, and all covenants herein contained shall run with the land and bind any and all successors in title to Lessor.

ARTICLE XX: QUIET ENJOYMENT

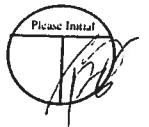
- 20.01 Lessor's Covenant. Upon payment by Lessee of the rents herein provided, and upon the observance and performance of all the covenants, terms and conditions on Lessee's part to be observed and performed, Lessee shall peaceably and quietly hold and enjoy the leased premises for the term hereby demised without hindrance or interruption by Lessor or any other person or persons lawfully or equitably claiming by, through or under Lessor; subject, nevertheless, to all the terms and conditions of this Lease.

ARTICLE XXI: MISCELLANEOUS

- 21.01 Waiver. The waiver by Lessor of any breach of any term, covenant or condition herein contained shall not be deemed to be a waiver of any subsequent breach of the same or any other term, covenant or condition herein contained. No covenant, term or condition of this Lease shall be deemed to have been waived by Lessor unless such waiver shall be in writing.
- 21.02 Accord and Satisfaction. No payment by Lessee or receipt by Lessor of a lesser amount than the monthly rent installments herein stipulated shall be deemed to be other than on account of the most current stipulated rent owed at that time, nor shall any endorsement or statement on any check or letter accompanying any check or payment as rent be deemed an accord and satisfaction.
- 21.03 No Partnership. Lessor does not, in any way or for any purpose, become a partner or Lessee in the conduct of its business or otherwise, or joint adventurer or a member of a joint enterprise with Lessee.
- 21.04 Force Majeure. In the event that either party hereto shall be delayed or hindered in or prevented from the performance of any act required hereunder by reason of strikes, lockouts, labor troubles, inability to procure materials, failure of power, restrictive governmental laws or regulations, riots, insurrection, war, or other reason of a like nature not the fault of the party delayed in performing work or doing acts required under the terms of this Lease, then the time allowed for performance for such act shall be extended by a period equivalent to the period of such delay. The provisions of this Section 21.04 shall not operate to excuse Lessee from the prompt payment of rent, percentage rent, additional rent or any other payments required by the terms of this Lease.
- 21.05 Lessor's Liability. If Lessor shall fail to perform any covenant, term or condition of this Lease upon Lessor's part to be performed, Lessee may not terminate the Lease, and Lessee's sole remedies shall be money damages (except as set forth in Section 1.16) and specific performance. If Lessee shall recover a money judgment against Lessor, such judgment shall be satisfied only out of the proceeds of sale received upon execution of such judgment and levy thereon against the right, title and interest of Lessor in the Shopping Center as the same may then be encumbered and neither Lessor nor if Lessor be a partnership, any of the partners comprising such partnership shall be liable for any deficiency. It is understood that in no event shall Lessee have any right to levy execution against any property of Lessor other than its interest in the Shopping Center as hereinabove expressly provided. In the event of the sale or other transfer of Lessor's right, title and interest in the leased premises or the Shopping Center, Lessor shall be released from all liability and obligations hereunder.
- 21.06 Notices and Payments. Any notice by Lessee to Lessor must be served by Federal Express or similar overnight delivery service or by certified mail, postage prepaid, addressed to Lessor at the place designated for the payment of rent, or at such other address as Lessor may designate from time to time by written notice. Any notice by Lessor (which may be given by Lessor or Lessor's attorney or management company) to Lessee must be served by Federal Express or similar overnight delivery service or by certified mail, postage prepaid, addressed to Lessee at the leased premises, or at such other address as Lessee may designate from time to time by written notice to Lessor. All notices shall be effective upon delivery or attempted delivery in accordance with this Section 21.06. Until otherwise notified in writing, Lessee shall pay all rent reserved herein and all other sums required under this Lease by check payable to the order of Lessor and shall forward the same to Lessor as herein provided.
- 21.07 Financial Statement. The persons signing this Lease on behalf of Lessee hereby personally represent and warrant to Lessor that the financial statements delivered to Lessor prior to the execution of this Lease properly reflect the true and correct value of all the assets and liabilities of Lessee and Guarantors. Lessee acknowledges that in entering into this Lease, Lessor is relying upon such statements and Lessee shall supply Lessor updated financial statements of Lessee and Guarantors each Lease Year and from time to time as requested by Lessor.

Please Initial
ACB

- 21.08 Guarantors. This Lease shall not be effective unless the persons, if any, listed in Section 1.01(q) hereof shall execute the Guaranty attached as Exhibit "C" of this Lease.
- 21.09 Captions and Section Numbers. The captions, section numbers, article numbers and headings appearing in this Lease are inserted only as a matter of convenience and in no way define, limit, construe or describe the scope or intent of such section or articles of this Lease.
- 21.10 Definitions. The word "Lessee" shall mean each and every person, firm or corporation mentioned as a Lessee herein, be the same one or more; and if there shall be more than one Lessee, any notice required or permitted by the terms of this Lease may be given by or to any one thereof, and it shall have the same force and effect as if given by or to all thereof. If there shall be more than one Lessee, they shall all be bound jointly and severally.
- 21.11 Partial Invalidity. If any term, covenant or condition of this Lease, or the application thereof to any person or circumstance, shall to any extent be invalid or unenforceable, the remainder of this Lease or the application of such term, covenant or condition of this Lease shall be valid and enforceable to the fullest extent permitted by law.
- 21.12 Recording. This Lease or a certificate or memorandum thereof prepared by Lessor may, at the option of Lessor, be recorded. Lessee shall execute any such certificate, short form lease or memorandum upon demand by Lessor.
- 21.13 Entire Agreement. The Lease, the exhibits and rider, if any, set forth all the covenants, promises, agreements, conditions and understandings between Lessor and Lessee concerning the leased premises, and there are no covenants, promises, agreements, conditions or understandings, either oral or written, between them other than as herein set forth. All prior communications, negotiations, arrangements, representations, agreements and understandings, whether oral, written or both, between the parties hereto and their representatives are merged herein and extinguished, this Lease superseding and canceling the same. Except as herein otherwise provided, no subsequent alteration, amendment, change or addition to this Lease shall be binding upon Lessor or Lessee unless reduced to writing and executed by the party against which such subsequent alteration, amendment, change or modification is to be enforced. If any provision contained, in any rider hereto is inconsistent with any printed provisions of this Lease, the provision contained in such rider shall supersede said printed provision. Lessee hereby acknowledges that (a) this Lease contains no restrictive covenants or exclusives in favor of Lessee; and (b) this Lease shall not be deemed or interpreted to contain, by implication or otherwise, any warranty, representation or agreement on the part of Lessor that any department store or regional or national chain store or any other merchant shall open for business or occupy or continue to occupy any premises in or adjoining the Shopping Center during the term of this Lease or any part thereof, and Lessee hereby expressly waives all claims with respect thereto and acknowledges that Lessee is not relying on any such warranty, representation or agreement by Lessor either as a matter of inducement in entering into this Lease or as a condition of this Lease or as a covenant by Lessor.
- 21.14 Jury Trial; Claims; Survival. To the extent permitted by applicable law, and acknowledging that the consequences of said waiver are fully understood, Lessee hereby expressly waives the right to trial by jury in any action taken with respect to this Lease and waives the right to interpose any set-off or counterclaim of any nature or description in any action or proceeding instituted against Lessee pursuant to this Lease. Notwithstanding anything in this Lease to the contrary, the representations and undertakings of Lessee under this Lease shall survive the expiration or termination of this Lease regardless of the means of such expiration or termination.
- 21.15 Applicable Law. This Lease and the rights and obligations of the parties arising hereunder shall be construed in accordance with the laws of the State.
- 21.16 Consents and Approvals. Whenever Lessor's consent or approval is required herein, such consent or approval shall not be deemed given until Lessor has provided such consent or approval in writing. Lessee shall pay Lessor's reasonable attorneys' fees incurred in connection with Lessee's request for Lessor's consent or approval. Where the consent or approval of Lessor shall be required, such consent or approval shall be granted in Lessor's sole discretion unless otherwise expressly provided. With respect to any provision of this Lease which either expressly provides or is held to provide that Lessor shall not unreasonably withhold or unreasonably delay any consent or approval, Lessee shall not be entitled to make claim for, and Lessee expressly waives claim for, damages incurred by Lessee by reason of Lessor's failure to comply, it being understood and agreed that Lessee's sole remedy shall be an action for specific performance.
- 21.17 Authority. In the event Lessee hereunder shall be a corporation, the persons executing this Lease on behalf of Lessee hereby covenant and warrant that Lessee is a duly qualified corporation and all steps have been taken prior to the date hereof to qualify Lessee to do business in the State; all franchise and corporate taxes have been paid to date; all future forms, reports, fees and other documents necessary to comply with applicable laws will be filed when due; and those persons executing this Lease on behalf of Lessee are duly qualified and authorized to bind, and in fact do bind, the corporation. In the event Lessee hereunder shall be a partnership, either general or limited, the persons or entities executing this Lease on behalf of Lessee hereby covenant and warrant that Lessee is a duly qualified partnership and all steps have been taken prior to the date hereof to qualify Lessee to do business in the State, if required by law; all franchise and partnership taxes have been paid to date; all future forms, reports, fees and other documents necessary to comply with applicable laws will be filed when due; and those entities executing this Lease on behalf of partnership are duly qualified to bind, and in fact do bind, the partnership. This Lease shall be effective only when it is signed by both Lessor and Lessee. Lessee's submission of a signed Lease for review by Lessor does not give Lessee any interest, right or option in the leased premises.



- 21.18 Interpretation. Both parties have read this Lease and had the opportunity to employ legal counsel and negotiate changes to the Lease. The Lease is the joint product of the parties and, in the event of any ambiguity herein, no inference shall be drawn against a party by reason of document preparation.
- 21.19 Brokers. Lessee represents and warrants to Lessor that no broker or agent negotiated or was instrumental in negotiating or consummating this Lease excepting only Broker. Broker is representing Lessor on this Lease, and Broker's commission shall be paid by Lessor. Lessee knows of no other real estate broker or agent who is or might be entitled to a commission or compensation in connection with this Lease. All fees, commissions or other compensation payable to any broker or agent of Lessee shall be paid by Lessee. Lessee shall hold Lessor harmless from all damages and shall indemnify Lessor for all damages paid or incurred by Lessor resulting from any claims asserted against Lessor by brokers or agents claiming through Lessee. Lessee acknowledges that Lessee has been informed that person(s) associated with Broker may have or may acquire an ownership interest in the Shopping Center, and Lessee acknowledges by signing this Lease that such ownership interest shall not affect the terms, conditions or validity of this Lease.

ARTICLE XXII: SECURITY AND RENT DEPOSITS

- 22.01 Amount of Security Deposit. Lessee, contemporaneously with the execution of this Lease, has deposited with Lessor the sum set forth in Section 1.01 (m), the receipt of which is hereby acknowledged by Lessor. Said deposit shall be held by Lessor, without liability for interest, as security for the faithful performance by Lessee of all the terms, covenants and conditions of this Lease by said Lessee to be kept and performed during the term hereof. Lessee specifically agrees that any deposit held hereunder by Lessor may be commingled with any other funds of Lessor.
- 22.02 Use and Return of Security Deposit. Should Lessee fail to keep and perform any of the terms, covenants and conditions of this Lease to be kept and performed by Lessee, as provided in Article XVI, Lessor may appropriate and apply said entire deposit, or so much thereof as may be necessary, to compensate Lessor for loss or damage sustained by Lessor due to such breach, without prejudice to its further rights and remedies. Should the entire security deposit or any portion thereof be appropriated and applied by Lessor for the payment of overdue rent or other sums due from Lessee hereunder, the Lessee shall, upon the written demand of Lessor, forthwith remit to Lessor a sufficient amount in cash to restore said deposit to the original sum deposited. Should Lessee comply with all the terms, covenants and conditions of this Lease, the said deposit shall be returned in full to Lessee at the end of the term of this Lease or upon its earlier termination.
- 22.03 Rent Deposit. ~~Lessee, contemporaneously with the execution of this Lease has deposited with Lessor the sum set forth in Section 1.01(n) to be held and applied to the initial rent due under this Lease.~~

ARTICLE XXIII: LESSEE COVENANTS; EASEMENTS

- 23.01 Lessee Covenants. Notwithstanding anything to the contrary contained herein, this Lease is subject to and made on the understanding that Lessor has granted and/or will grant certain restrictions and exclusive use covenants to other Lessees of the Shopping Center (herein the "Lessee Covenants"). Lessee acknowledges that Lessee's use and/or occupancy of the leased premises in violation of any current or future Lessee Covenants would subject Lessor to substantial damages, and as such, Lessee acknowledges and agrees that any such violation by Lessee of any such Lessee Covenants shall constitute a default hereunder entitling Lessor to cancel this Lease or enjoin Lessee from violating such Lessee Covenants, or exercise any of the remedies stated in Article XVI hereof and any other remedies available under the law of the State. Nothing contained in this Section 23.01 shall be construed to permit Lessee to expand the use restrictions set forth in Section 4.01 hereof.
- 23.02 Easements. The Shopping Center is and/or may be encumbered and/or benefited from time to time by certain easements, development and operating covenants, and similar agreements. Lessee agrees that it shall abide by any such agreement, including as any such agreement may be amended from time to time in Lessor's sole discretion. Lessor shall have the right to enter into and/or terminate any such agreement in Lessor's sole discretion.

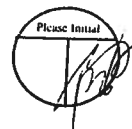
IN WITNESS WHEREOF, Lessor and Lessee have executed this Lease as of the day and year first above written.

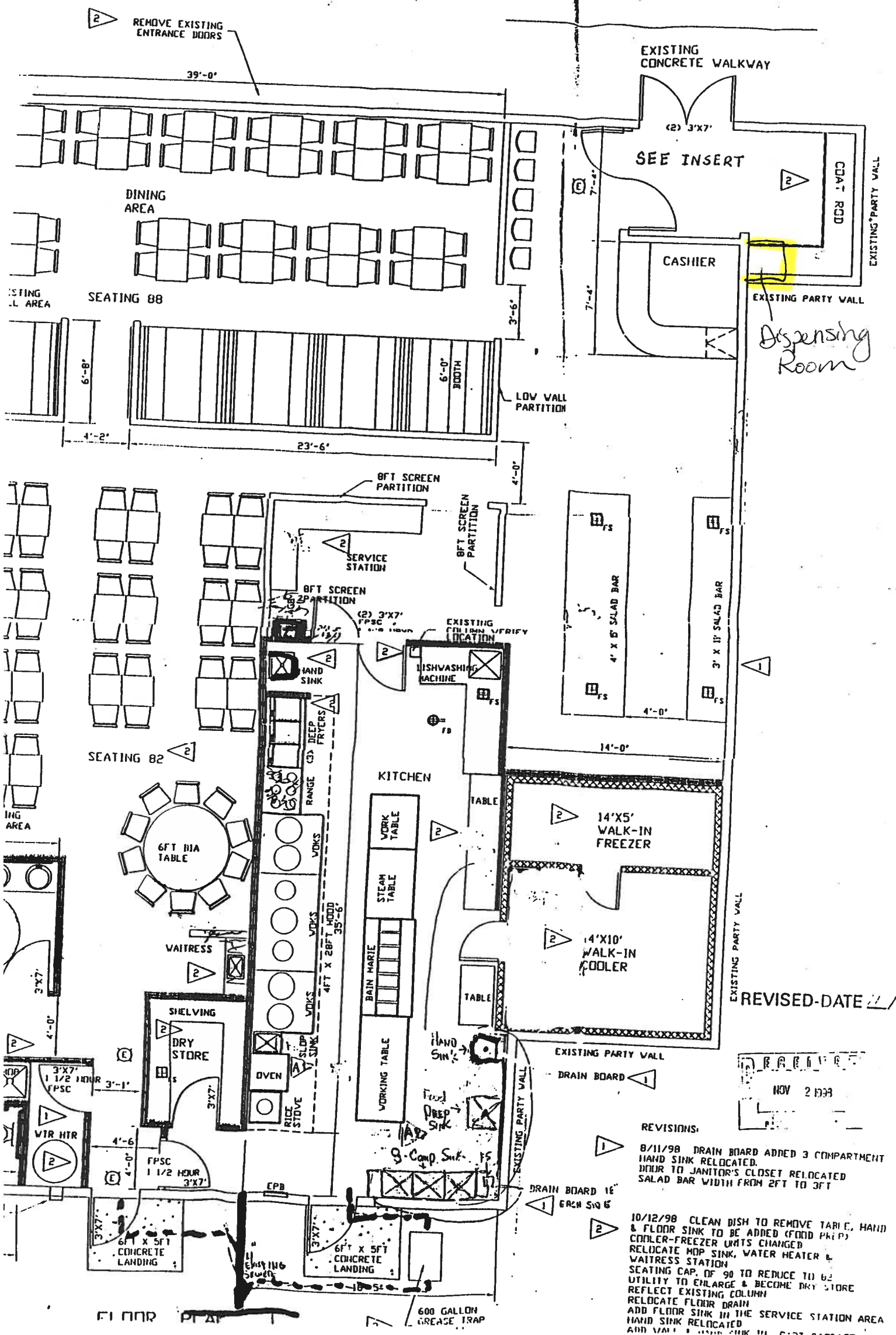
LESSOR: Cheyenne Real Estate Development II, L.L.C DATE WITNESS
(a Missouri Limited Liability Company)
By: Kroenke Group Investments, Inc., member
(a Missouri Corporation)

By: E. Stanley Kroenke
Its: President

LESSEE: Peng Cheng Zeng

By: Peng Cheng Zeng
Its:
S.S.# 050-82-1744 Date of Birth 2/21/71





APPLICATION FOR FOOD LICENSE

FOOD LICENSE: \$100.00 Initial Fee; \$50.00 Annual Renewal Fee.

(Licenses shall expire one year after date of issuance)

Cheyenne Office Use Only

LICENSE ACCOUNT NUMBER

ACTIVATION DATE

CHECK NO/CASH

LICENSE APPLICATION INFORMATION (to be completed by applicant)

Type of Application:

☐ New ☐ Change of Location ☒ Change of Owner

If change of owner or location, previous establishment name/location:

CHINA BUFFET INC

- Establishment Information -

Establishment Name: C & Z LLC

Person in Charge on Site: JING ZHEN SHI

Physical Address: 1958 DELL RANGE BLVD STE D

City: CHEYENNE

State: WY

Zip: 82009

Business Phone Number: (307) 635-5699

Person in Charge on Site Phone: JING ZHEN SHI

Email: HELENXSHI@HOTMAIL.COM

Fax: _____

- Owner Information -

Name of Owner: AI QIU ZHU

Form of Organization:

Name of Company (if applicable): _____

☒ Individual ☐ Association ☐ Corporation

Parent Company (if applicable): _____

☐ Partnership ☐ Other Entity _____

Address: 4703 MOUNTAIN RD #2

City: CHEYENNE

State: WY

Zip: 82009

Owner Phone Number: 646-286-1296

INDICATE WHERE TO MAIL ALL CORRESPONDANCE 1 (1=ESTABLISHMENT; 2=OWNER; 3=EMAIL)

Type of Establishment (please check applicable box)

☒ Food Service ☐ Grocery ☐ Convenience ☐ Meat Plant ☐ Distributor ☐ Warehouse ☐ Dietary Supplement Processor ☐ Institution

☐ Guest Ranch ☐ Dairy ☐ Bulk Water ☐ Bar ☐ Mobile ☐ Commissary Dependent Mobile ☐ Retail Processor

☐ Retail Pre-Packaged ☐ School ☐ Hotel ☐ Bed and Breakfast ☐ Seasonal Facility

☐ Manufactured Food Processor; Type of Food: _____

I ATTEST TO THE ACCURACY AND INFORMATION PROVIDED IN THIS APPLICATION. I AGREE TO COMPLY WITH ALL APPLICABLE WYOMING LAWS AND REGULATIONS AND I UNDERSTAND THAT EACH SECTION OF THE LAWS AND REGULATIONS IS SEPARATELY AND COLLECTIVELY ENFORCEABLE. I AGREE TO ALLOW THE REGULATORY AUTHORITY ACCESS TO MY ESTABLISHMENT. LATE RENEWAL PAYMENTS WILL RESULT IN DEACTIVATION.

ZHU Ai Qiu

01/13/2020

SIGNATURE OF APPLICANT

DATE

APPROVING OFFICIAL

COUNTY

Make Checks Payable to:
WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES SECTION
2219 CAREY AVE.
CHEYENNE, WY 82002
(307) 777-7211

State Relay Service at 7-1-1 or 1 800 877-9965

Instructions: A plan review must be submitted before this application can be considered, unless this is a change of ownership. Submit this application to your inspector of the WY Department of Agriculture or local County Health Dept. Complete all sections. If a section is not applicable enter "N/A". If additional space is needed for any item, attach additional sheet.

EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES

Revised 03/16

White copy to Cheyenne----Yellow copy inspector----Pink copy establishment



APPETIZER

1. Egg Roll (2)

2. Fried Cheese Wonton (8)

3. Fried or Steamed Dumpling (8)

4. Fried Shrimp (10)

5. Pu Pu Platter (for 2)

6. Teriyaki Chicken (6)

7. Fried Chicken Wing (8)

8. Fried Donut

9. Buffalo Chicken Wing
- 2.50

4.50

5.95

5.25

9.95

5.99

4.50

3.95

5.50

SOUP

10. Wonton Soup ... (S) 2.95 (L) 4.95

11. Egg Drop Soup ... (S) 2.50 (L) 4.50

12. Hot & Sour Soup (S) 2.99 (L) 5.50

FRIED RICE

13. Plain Fried Rice

14. Vegetable Fried Rice

15. Pork or Chicken

16. Fried Rice

17. Shrimp or Beef Fried Rice

18. House Special Fried Rice
- 7.25

7.75

7.95

8.55

8.55

LO MEIN

18. Vegetable Lo Mein

19. Roast Pork or Chicken Lo Mein

20. Shrimp or Beef Lo Mein

21. House Special Lo Mein
- 7.75

7.95

8.55

8.55

MAI FUN

22. Vegetable Mai Fun

23. Pork or Chicken Mai Fun

24. Shrimp Mai Fun

25. Singapore Mai Fun

26. House Special Mai Fun
- 8.25

8.50

8.99

8.99

8.99

PORK

27. Pork w. Chinese

28. Vegetable

29. Pork w. Broccoli

30. Sweet and Sour Pork
- 8.75

8.75

8.75

CHICKEN

30. Chicken w. Broccoli

31. Chicken w. Chinese Vegetable

32. Moo Goo Gai Pan (Chicken)

33. Chicken w. Cashew Nuts

34. Curry Chicken w. Onion

35. Sesame Chicken

36. General Tso's Chicken

37. Sweet & Sour Chicken

38. Pineapple Chicken

39. Orange Chicken
- 8.95

8.95

8.95

8.95

8.95

9.55

9.55

8.95

9.55

9.55



BEEF

40. Beef w. Broccoli

41. Beef w. Chinese Vegetable

42. Pepper Steak w. Onion

43. Beef w. Mushrooms

44. Curry Beef w. Onion

45. Mongolian Beef
- 9.55

9.55

9.55

9.55

9.55

9.55

SEAFOOD

46. Shrimp w. Broccoli

47. Shrimp w. Chinese Vegetable

48. Shrimp w. Lobster Sauce

49. Shrimp w. Cashew Nuts

50. Sweet & Sour Shrimp
- 9.75

9.75

9.75

9.75

9.75

China Buffet

DINE IN & TAKE OUT BUFFET

CHINESE RESTAURANT

CHINESE FOOD TO EAT IN OR TAKE OUT
The Best Chinese Buffet In Town

1958 D Dell Range Blvd., Cheyenne, WY 82009

Tel. (307) 635-5699

OPEN HOURS: 11:00 AM - 9:30 PM



All You Can Eat



MOO SHU

51. Moo Shu Chicken, Pork or Vegetable

52. Moo Shu Beef or Shrimp
- 8.75

8.95

EGG FOO YOUNG

53. Vegetable Egg Foo Young

54. Pork or Chicken Egg Foo Young

55. Shrimp or Beef Egg Foo Young

56. House Special Egg Foo Young
- 8.99

9.25

9.25

9.75

VEGETABLE DISHES

57. Mixed Vegetable

58. Broccoli w. Garlic Sauce

59. Ma Po Spicy Bean Curd

60. Sauteed String Beans
- 8.25

8.25

8.25

8.25



SPECIAL COMBO

(w. White Rice or Fried Rice & Egg Roll)

- Lunch \$7.99

Dinner \$8.99
- CL1. Moo Goo Gai Pan

CL2. Sweet & Sour Chicken or Pork

CL3. Sliced Pork w. Chinese Vegetable

CL4. Lo Mein (Chicken, pork, shrimp or beef)

CL5. Chicken w. Broccoli

CL6. Chicken w. Cashew Nuts

CL7. Vegetable Delight

CL8. Shrimp w. Lobster Sauce

CL9. Beef or Shrimp w. Broccoli

CL10. Pepper Steak

CL11. Sesame Chicken

CL12. Beef or Chicken w. Garlic Sauce

CL13. Szechuan Beef or Chicken

CL14. Hunan Beef or Chicken

CL15. General Tso's Chicken

CL16. Kung Pao Chicken

51. Moo Shu Chicken, Pork or Vegetable

52. Moo Shu Beef or Shrimp

53. Vegetable Egg Foo Young

54. Pork or Chicken Egg Foo Young

55. Shrimp or Beef Egg Foo Young

56. House Special Egg Foo Young

57. Mixed Vegetable

58. Broccoli w. Garlic Sauce

59. Ma Po Spicy Bean Curd

60. Sauteed String Beans

61. Szechuan Delicacy

62. Hunan Shrimp

63. Hunan Chicken

64. Hunan Beef

65. Chicken & Beef Hunan Style

66. Four Season

67. Chicken w. Garlic Sauce

68. Shrimp w. Garlic Sauce

69. Beef w. Garlic Sauce

70. Pork w. Garlic Sauce

71. Kung Po Chicken

72. Kung Po Shrimp

73. Hot & Spicy Shrimp

74. Hot & Spicy Shredded Chicken

75. Double Sauteed Pork

76. Dragon & Phoenix
- 10.55

9.75

9.75

9.55

9.99

9.99

8.95

9.75

9.55

8.75

8.95

9.99

9.99

9.75

8.95

8.95

10.99

01/13/2020

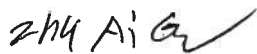
Dear Marian Orr and Cheyenne City Council members,

My name is Ai Qin Zhu. I would like to introduce myself to you as the new owner of C & Z LLC dba China Buffet.

China Buffet has been a staple in the community of Cheyenne since 1998 and we will continue to uphold this tradition. Although we are new owners, we have managed or have been associated with China Buffet for the better half of a decade. Our plan is to continue with our current staff and operations which will allow us to continue to serve the people of Cheyenne, and its many visitors, the amazing traditional Chinese food we have all come to expect. We are very excited to have ownership in such a long standing establishment and look forward to working with the community to keep Cheyenne the beautiful, charming city it is.

We appreciate your time and patronage.

Sincerely,

A handwritten signature in black ink, appearing to read "Zhu Ai Q", followed by a checkmark-like flourish.

Ai Qin Zhu

STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, Secretary of State of the State of Wyoming, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF ORGANIZATION

C & Z LLC

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **23rd** day of **August, 2019** at **1:03 PM**.

Remainder intentionally left blank.



Filed Date: 08/23/2019

Edward A. Buchanan

Secretary of State

Filed Online By:

Jing Zhen Shi

on 08/23/2019



Secretary of State

Wyoming Secretary of State
Herschler Bldg East, Ste.100 & 101
Cheyenne, WY 82002-0020
Ph. 307-777-7311

For Office Use Only

WY Secretary of State
FILED: Aug 23 2019 1:03PM
Original ID: 2019-000872452

Limited Liability Company Articles of Organization

I. The name of the limited liability company is:

C & Z LLC

II. The name and physical address of the registered agent of the limited liability company is:

Jing Zhen Shi
1958 Dell Range Blvd D
Cheyenne, WY 82009

III. The mailing address of the limited liability company is:

1958 Dell Range Blfd D
Cheyenne, WY 82009

IV. The principal office address of the limited liability company is:

1958 Dell Range Blvd D
Cheyenne, WY 82009

V. The organizer of the limited liability company is:

Jing Zhen Shu
1958 Dell Range Blvd D, Cheyenne, WY 82009

Signature: Jing Zhen Shi

Date: 08/23/2019

Print Name: Jing Zhen Shi

Title: Secretary

Email: helenxshi@hotmail.com

Daytime Phone #: (307) 635-5699



Secretary of State

Wyoming Secretary of State
Herschler Bldg East, Ste.100 & 101

Cheyenne, WY 82002-0020
Ph. 307-777-7311

- ☒ I am the person whose signature appears on the filing; that I am authorized to file these documents on behalf of the business entity to which they pertain; and that the information I am submitting is true and correct to the best of my knowledge.
- ☒ I am filing in accordance with the provisions of the Wyoming Limited Liability Company Act, (W.S. 17-29-101 through 17-29-1105) and Registered Offices and Agents Act (W.S. 17-28-101 through 17-28-111).
- ☒ I understand that the information submitted electronically by me will be used to generate Articles of Organization that will be filed with the Wyoming Secretary of State.
- ☒ I intend and agree that the electronic submission of the information set forth herein constitutes my signature for this filing.
- ☒ I have conducted the appropriate name searches to ensure compliance with W.S. 17-16-401.

Notice Regarding False Filings: Filing a false document could result in criminal penalty and prosecution pursuant to W.S. 6-5-308.

W.S. 6-5-308. Penalty for filing false document.

(a) A person commits a felony punishable by imprisonment for not more than two (2) years, a fine of not more than two thousand dollars (\$2,000.00), or both, if he files with the secretary of state and willfully or knowingly:

(i) Falsifies, conceals or covers up by any trick, scheme or device a material fact;

(ii) Makes any materially false, fictitious or fraudulent statement or representation; or

(iii) Makes or uses any false writing or document knowing the same to contain any materially false, fictitious or fraudulent statement or entry.

- ☒ I acknowledge having read W.S. 6-5-308.

Filer is: ☒ An Individual ☐ An Organization

Filer Information:

By submitting this form I agree and accept this electronic filing as legal submission of my Articles of Organization.

Signature: Jing Zhen Shi
Print Name: Jing Zhen Shi
Title: Secretary
Email: helenxshi@hotmail.com
Daytime Phone #: (307) 635-5699

Date: 08/23/2019

Consent to Appointment by Registered Agent

Jing Zhen Shi, whose registered office is located at **1958 Dell Range Blvd D, Cheyenne, WY 82009**, voluntarily consented to serve as the registered agent for **C & Z LLC** and has certified they are in compliance with the requirements of W.S. 17-28-101 through W.S. 17-28-111.

I have obtained a signed and dated statement by the registered agent in which they voluntarily consent to appointment for this entity.

Signature: **Jing Zhen Shi**

Date: **08/23/2019**

Print Name: **Jing Zhen Shi**

Title: **Secretary**

Email: **helenxshi@hotmail.com**

Daytime Phone #: **(307) 635-5699**

01/13/2020

C & Z LLC uses Professional Server Certification Corporation (PSCC) for its alcohol training. Our staff involved in the handling and serving of alcohol is currently PSCC certified.

Sincerely,


Peng Zhen Shi
Jing zhen Shi